

HOUSE BILL 129

By Reneau

AN ACT to amend Tennessee Code Annotated, Title 58,
Chapter 1, relative to the military.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 58, Chapter 1, Part 1, is amended by
adding the following as a new section:

(a) As used in this section:

(1) "Active duty combat" means performing the following services in the
active federal military service of the United States:

(A) Participation in an armed conflict;

(B) Performance of a hazardous service relating to an armed
conflict in a foreign state; or

(C) Performance of a duty through an instrumentality of war; and

(2) "Official declaration of war" means an official declaration of war made
by the United States congress pursuant to the United States Constitution, Article
I, § 8, Clause 11.

(b) The Tennessee national guard or a member of the national guard must not
be released from military service of this state into active duty combat unless the United
States congress has passed an official declaration of war or has taken an official action
pursuant to the United States Constitution, Article I, § 8, Clause 15, to explicitly call forth
the Tennessee national guard or a member of the national guard for the enumerated
purposes of executing the laws of the union, repelling an invasion, or suppressing an
insurrection. The governor shall take all actions necessary to comply with this section.

(c) This section does not limit or prohibit the governor from consenting to the deployment of a Tennessee national guard member under title 32 U.S.C., defense support for civil authority missions within the United States and United States territories.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.